

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on July 29, 2016,
effective on August 15, 2016

Rule 5.482. Proceedings after notice

~~(a)~~–(b) * * *

~~(c)~~—When there is information or response from a tribe that requires additional steps

If after notice has been provided as required by federal and state law a tribe responds indicating that the child is eligible for membership if certain steps are followed, the court must proceed as if the child is an Indian child and direct the appropriate individual or agency to provide active efforts under rule 5.484(c) to secure tribal membership for the child.

~~(d)~~(c) When there is no information or response from a tribe

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(Subd (c) relettered effective August 15, 2016; adopted as subd (d); previously amended effective January 1, 2013.)

~~(e)~~(d) Intervention

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(Subd (d) relettered effective August 15, 2016; adopted as subd (e); previously amended effective January 1, 2013.)

~~(f)~~(e) Posthearing actions

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(Subd (e) relettered effective August 15, 2016; adopted as subd (f); previously amended effective January 1, 2013.)

~~(g)~~(f) Consultation with tribe

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(Subd (f) relettered effective August 15, 2016; adopted as subd (g); previously amended effective July 1, 2013.)

Rule 5.482 amended effective August 15, 2016; adopted effective January 1, 2008; previously amended effective January 1, 2013, and July 1, 2013.